

13. 26CV01819 In re: Montoya, Juanita Matilde

EVENT: Change of name (Adult)

As of this writing the Court is awaiting the results of the background check.

14. 26CV01820 In re: Underwood, Anne Marie

EVENT: Change of name (adult)

As of this writing the Court is awaiting the results of the background check.

15. 26CV01874 In re: Collins, Melanie Alene

EVENT: Change of name (minor)

There is no proof of publication on file. Upon the filing of the proof of publication, the Court will sign the decree provided.

16-17. 26CV01960 Al-Nasrawi, Saleh v. Sugui, Clarita M et al.

EVENT: (1) OSC re preliminary injunction

(2) Defendants' Motion to Modify Temporary Restraining Order to Release All Frozen Assets

OSC re: Preliminary injunction is GRANTED.

Preliminarily, the Court is deeming Defendant's "Motion to Modify Temporary Restraining Order to Release All Frozen Assets" as an opposition to the requested preliminary injunction.

In deciding whether to issue a preliminary injunction, a trial court must evaluate two interrelated factors: (i) the likelihood that the party seeking the injunction will ultimately prevail on the merits of [their] claim, and (ii) the balance of harm presented, i.e., the comparative consequences of the issuance and nonissuance of the injunction. (*City of Oxnard v. County of Ventura* (2021) 71 Cal.App.5th 1010, 1014-1015)

Balance of Harm

Addressing these factors in reverse order, the Court finds the balance of harm favors Plaintiff. Any contention by Defendants that they will be harmed by the injunction is undermined by their testimony that the subject crypto currency is not theirs.

Defendant Monolito Sugui seems to suggest there are accounts subject to the TRO that are his personal accounts. However, he has not identified specific accounts by number that he claims are owned by him independently that are implicated by the TRO. Even if the balance of harm was close, maintaining the status quo while the dispute is litigated is the tiebreaker. (See *King v. Meese* (1987) 43 Cal.3d 1217, 1227)

Likelihood of Success

The Court finds Plaintiff has demonstrated a likelihood of success on his conversion-based claims. The gravamen of this case is that Plaintiff entrusted funds to Galen Collins and Plaintiff has not been able to retrieve those funds. The forensic report corroborates Plaintiff's claim that the funds were transferred to identifiable accounts. The opposition also corroborates Plaintiff's claim because Defendants' declarations state they believe the funds identified in the forensic report belong to Galen Collins' estate. (See Declaration of Clarita Collins, paragraph 16) Thus, the opposition acknowledges Mr. Collins received funds from Plaintiff.

It is Inappropriate for the Estate to Hold the Funds

Defendants request in the alternative that the estate hold the funds while this action is pending. In light of Defendants' position that the funds traced in the forensic report belong to the estate, it is inappropriate for the estate to hold the funds.

Plaintiff's Request for an Order Requiring Defendants to Identify Who Controls the Accounts

This request is denied. However, it is the Court's expectation Defendants will respond completely and truthfully to such requests made in the course of discovery.

No Undertaking Required

Defendants waived any bond requirement by not addressing the subject in the opposition.
(See *Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 746)

Plaintiff shall prepare and submit a form of order consistent with this ruling within 2 weeks.

18. 26CV02088 In re the Petition of R B

*EVENT: Event: Petition for Approval for Transfer of Structured Settlement Payment Rights
(Continued from 6/24/26)*

The Court will hear from counsel and the proposed payee.